

Lecture 2: Principle of the Rechtsstaat

Chapter E, Section 1 (pp. 24-42)

P. Egli - Introduction to Swiss Constitutional Law, 3rd Edition

Study Notes

CHAPTER E: STRUCTURAL PRINCIPLES OF THE CONSTITUTION

Remember

- Swiss constitutional law rests on **four fundamental structural principles**: (1) Rechtsstaat, (2) Federalism, (3) Democracy, (4) Social Justice.
- These principles **guide all state actions** but are too vague to be directly applicable in courts.
- They are **implied** in the Constitution's structure and content, not found explicitly.
- They may **evolve** as the Constitution is open to revision.

1. PRINCIPLE OF THE RECHTSSTAAT

Remember

- The main idea: **limit the power of the state by law** to protect individuals from arbitrary exercise of authority.
- Modern understanding encompasses: **formal elements** (legality, division of powers, independent judiciary) and **substantive elements** (fundamental rights, social guarantees).

1.1 Concept: Overview

a) Historical Development in Continental Europe

- Concept of the **Rechtsstaat** (law-based-state) dates back to **Plato** and **Aristotle**
- In Germany, first used in connection with **liberal theories in the early 19th century**
- Influenced by **Immanuel Kant**: rationalize political rule, institutionalize liberal claims against absolutism
- The state should be shaped, bound, and limited by law in three ways:
 - > State administration must be **based on law**
 - > **Formal law** required for all state action affecting freedom and property
 - > All administrative actions subject to **judicial review**
- The term Rechtsstaat was intended as an **antonym for tyranny and arbitrariness**

b) Modern Understanding

- Formal elements proved **insufficient** to secure human dignity during industrialization
- 19th century **Nachwachterstaat** (minimal state): limited to ensuring order and security
- Expanded to a **'thick' conception** with substantive dimension
- After WWII: emphasis on **universal human rights**; in Germany, the anti-model to the Nazi state

1.2 Rechtsstaat in a Formal Sense

a) Three Formal Elements

Element 1: Principle of Legality

- All authorities must **comply with the law**
- **Gesetzesvorrang** (precedence of statute): law takes precedence over any other authority
- **Gesetzesvorbehalt** (statutory reservation): state actions must be based on law
- Three qualitative requirements of the law:
 - > **Requirement of a legal rule** (Erfordernis des Rechtssatzes): rules must be general and abstract, applying to indeterminate persons/cases -- guarantees **equality before the law**
 - > **Requirement of sufficient precision**: law must allow individuals to adjust behaviour and foresee consequences
 - > **Requirement of adequate legal form** (Normstufe): important questions require a **statute enacted by the legislature** (not just an ordinance) -- guarantees **democratic legitimacy**

Element 2: Division of Powers

- State divided into **three branches**: legislature, executive, judiciary
- Each has separate powers and responsibilities
- System of **checks and balances** -- each branch limits the others

Element 3: Independent Judiciary

- Judicial review is an **effective control mechanism** over state actions
- Right to a **legally constituted, competent, independent and impartial court**
- **Independent** = judges decide only based on law; **Impartial** = judges are unprejudiced

b) Formal Elements in Swiss Constitutional Law

Key Constitutional Articles

- **Art. 5 para. 1 Cst**: All state activities must be based on and limited by law (legality)
- **Art. 164 para. 1 Cst**: Important legal rules enacted as federal statutes (democratic legitimacy)
- **Art. 141 para. 1 lit. a Cst**: Federal statutes subject to optional referendum
- **Art. 5 para. 4 Cst**: Federation and cantons shall respect international law
- **Art. 148-191c Cst**: Division of powers (Assembly, Council, Courts)
- **Art. 191c Cst**: Independence of the judiciary
- **Art. 29-32 Cst**: Procedural due process rights
- **Art. 190 Cst**: Courts must apply federal statutes even if unconstitutional (limitation!)

Critical: Art. 190 Cst

Courts are obliged to apply federal statutes even if they conflict with the Constitution. This restriction **ONLY** applies to federal statutes -- not to federal ordinances, cantonal or communal laws.

1.3 Rechtsstaat in a Substantive Sense

- The formal Rechtsstaat is complemented by **substantive principles**: respect for human freedom, equality, and commitment to a liberal and just order
 - Core elements: **civil liberties, equality before the law, political rights, basic social guarantees**
 - Recognizes that effective exercise of rights requires **positive state measures** (linking to social justice)

Key Constitutional Articles

- **Art. 7 Cst**: Human dignity as supreme value

- **Art. 36 para. 4 Cst:** Essence of fundamental rights may not be encroached upon
 - **Art. 2 Cst:** Aims of the Confederation (liberty, welfare, equality)
 - **Art. 41 Cst:** Social objectives
 - **Art. 11, 12, 19 Cst:** Basic social rights
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1.4 Rechtsstaat vs. Rule of Law

Both share a common core: all state authorities should be **accountable to laws** that are publicly promulgated, equally enforced, and independently adjudicated. But they developed in different historical contexts.

Rule of Law (Anglo-American Tradition)

- Traced to the English **Petition of Rights of 1628**: no taxation without parliament, no arbitrary imprisonment
- **Dicey's three principles**: (1) supremacy of law over arbitrary power; (2) equal subjection of all to ordinary law; (3) rights protected by ordinary law, not abstract declarations
- **Parliament is not bound** by any higher law (parliamentary supremacy)

Key Contrasts

Aspect	Rechtsstaat	Rule of Law
Focus	Written constitution	Ordinary law & courts
Limits	All three branches	Excludes parliament
Rights source	Constitutional guarantees	Court-defined rights

1.5 Form of Legal Enactments

a) Overview of Legal Forms

- **Constitutional provisions:** general and abstract; mandatory referendum (double majority); highest precedence
- **Federal statutes:** general and abstract; subject to optional referendum; high democratic legitimacy (Art. 163 Cst)
- **(Parliamentary) ordinances:** general and abstract; NOT subject to referendum; lower legitimacy
- **Federal decrees:** concrete, specific decisions (not general rules); some subject to referendum, some not

b) Federal Constitution -- Total Revision

- Three ways to initiate:
 - > **Popular initiative:** 100,000 signatures within 18 months (Art. 138 para. 1 Cst)
 - > **One parliamentary chamber** proposes: requires preliminary popular vote (Art. 193 para. 2 Cst)
 - > **Both chambers** agree: they draft a new constitution
- If initiated by popular initiative or one chamber, the **Federal Assembly is dissolved** and new elections held (Art. 193 para. 3 Cst)
- Must respect **mandatory provisions of international law (jus cogens)** -- Art. 193 para. 4 Cst
- Must be approved by **mandatory referendum** (people + cantons)

c) Federal Constitution -- Partial Revision

- **Popular initiative:** 100,000 signatures; form of a **general proposal** or **specific draft** (Art. 139 para. 2 Cst)
- Parliament may submit a **counterproposal** (Art. 139 para. 5 Cst)
- **Federal Assembly** may also initiate partial revision (Art. 194 para. 1 Cst)
- Validity requirements: consistency of form, subject matter, mandatory international law, implementability
- Must be approved by **mandatory referendum** (double majority)

d) Federal Statutes (Art. 164 Cst)

- All **important legal norms** must be enacted as federal statutes
- Subject to **optional referendum:** 50,000 signatures or 8 cantons within 100 days (Art. 141 Cst)
- Only requires majority of **voting population** (not cantonal majority)

Legislative Process

- 1. Initiated by Federal Council, parliament, or canton
- 2. **Public consultation (Vernehmlassung)** with cantons, parties, stakeholders (Art. 147 Cst)
- 3. Second draft with dispatch (Botschaft) published in Federal Gazette
- 4. Debated by both parliamentary chambers (committee then full chamber)
- 5. Published; 100-day referendum period starts
- 6. Enters into force after publication in official compilation (Art. 2, 7 PubA)

e) Emergency Federal Statutes (Art. 165 Cst)

- Declared urgent by **absolute majority** of both chambers; duration must be limited

Duration	Const. Basis	Referendum
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<= 1 year	Either	None
> 1 year	Yes	Optional (abrogative)
> 1 year	No	Mandatory (abrogative)

- Not approved in popular vote? **May not be renewed** (Art. 165 para. 4 Cst)
- Example: **COVID-19 Act** (25 Sept 2020) -- emergency statute with constitutional basis, approved by popular vote 13 June 2021

f) Ordinances

- Legal rules NOT enacted as constitutional amendments or statutes; **not subject to referendum**
- Usually adopted by the **executive branch**; also by Federal Assembly or courts
- Four delegation requirements (Art. 164 para. 2 Cst):
 - > Not excluded by Constitution
 - > Based on a statutory provision
 - > Subject matter defined exactly in the statute
 - > Most important provisions remain in the statute
- **Emergency ordinances** (Art. 185 para. 3 Cst): Federal Council can issue directly based on Constitution; limited duration; cease after 6 months without a bill (Art. 7d GAOA)

g) Federal Decrees

- Parliamentary decisions on **concrete, specific matters** (not general rules)
- Some subject to optional referendum (if constitutionally/statutorily required)
- **Simple federal decrees**: not subject to referendum (Art. 163 para. 2 Cst)
- Examples: validity of popular initiatives (Art. 173 para. 1 lit. f), expenditure (Art. 167), cantonal constitution guarantees (Art. 172 para. 2)

1.6 Hierarchy of Norms

Domestic Hierarchy (Lex Superior)

- **Federal Constitution > Federal statute > Federal ordinance**
- **Federal law (all levels) > Cantonal law > Communal law (Art. 49 Cst)**

Conflict Resolution Rules (Same Level)

- **Lex posterior derogat legi priori**: newer law overrides older law
- **Lex specialis derogat legi generali**: specific law overrides general law

International Law vs. Domestic Law

- **Jus cogens** (peremptory norms) always take precedence over national law
- Art. 5 para. 4 Cst: obligation to respect international law
- Art. 190 Cst: courts must apply both federal statutes AND international law
- **Schubert case (BGE 99 Ib 39)**: later statute prevails if parliament **intentionally departed** from the treaty
- **But for human rights treaties (BGE 139 I 16)**: international treaty prevails even if not more recent
- Leading case: **Art. 8 ECHR** (family life) takes precedence over **Art. 121 Cst** (expulsion)

Key Conflict Rules Summary

1. Jus cogens ALWAYS prevails
2. For human rights treaties (ECHR): treaty prevails
3. For other treaties: Schubert rule (later statute may prevail if intentional)
4. Federal law prevails over cantonal law (Art. 49 Cst)